

the Plaintiff of the 7/14/26, appearance.

Background

The requested admissions at issue appear to be the same in either motion. In the interest of economy, this court will analyze the issues raised in the motion filed on 2/26/26 ("Motion").

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," to Exhibit One of the Motion, as well as proof that they served Defendant with the discovery request by mail, on 6/13/25, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

Defendant filed a Response, on 3/9/26, and properly served the Plaintiff. Defendant contends that he did respond to the discovery requests of Plaintiff, mailing the first of multiple responses on 7/7/25, and attached as exhibits one through three. Defendant states he mailed the subsequent responses after Plaintiff represented in court hearings that his responses were not received or incomplete. Defendant also represents that he had initially overlooked the request for admissions because of the way it was attached to the set of interrogatories.

Though he did not include proof that he served these discovery responses, they are contained in his Response, as Exhibits 1 through 3, and the Response was properly served. Defendant does not indicate if he served a copy of the responses in Exhibit 3.

Of the Exhibits Defendant provided, only Exhibit 3 contains responses to the requests for admission. These responses generally indicate that Defendant does not have the information to answer the request, or that he denies the request.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

In the instant matter, this court finds that Defendant's responses in Exhibit 3 are substantially compliant. Moreover, this court does not find any evidence contradicting Defendant's account that he mistakenly overlooked the request for admissions, and this was the reason for any untimely response.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order and serve copy of filed Order on Plaintiff.

8. 9:00 AM CASE NUMBER: L25-04811
CASE NAME: U.S. BANK NATIONAL ASSOCIATION VS. MELJORIE FELICISIMO
*HEARING ON MOTION IN RE: SUMMARY JUDGMENT
FILED BY:
TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration of Anthony Denmark, a Separate Statement of Undisputed Material Facts, and a Memo of Costs. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address for Defendant provided in the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the

underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the Declaration, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Denmark declared that he was familiar with the record keeping practice of US Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, there is no evidence about whether Defendant agreed to the purported terms and conditions. Though Plaintiff provides a copy of the terms, in their Exhibit A to the Declaration, and the Declaration indicates that the Defendant's use of the credit card is an act of acceptance of the terms, there is no evidence that these terms were provided to Defendant. Other than the document with Defendant's name and address at the top, there is no statement from Mr. Denmark showing that it is the custom and practice of US Bank to mail these terms to the Defendant upon receiving Defendant's application.

Plaintiff does not make a *prima facie* showing of the existence of a contract.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. Court will prepare the Order.

9. 9:00 AM CASE NUMBER: L25-08444

CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA

*HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT